

Eastern Federal Lands Highway Division NEPA Categorical Exclusion Form

Project Number: NATR 3N19, 3H28 ETC

Date: 10/21/2024

Project Name: Parkway Rehabilitation between MP 121 and MP 204 (Phase 3)

Location: Natchez Trace Parkway
Attala, Choctaw, Leake, Madison and Webster
Counties, Mississippi

CE Category 23 CFR 771.117 (c)(22): Projects, as defined in 23 U.S.C. 101, that would take place entirely within the existing operational right-of-way [...]

See [23 CFR 771.117](#) for full description of CE categories, including additional requirements when applying (c)26-28.

Project Description

The project consists of the resurfacing of the Natchez Trace Parkway (NATR) from milepost (MP) 121 to MP 204 including ramps, access roads, pull-offs, and parking areas. This project is Phase 3 of the larger program of parkway rehabilitation. The project consists of cold in-place recycling, milling, asphalt overlay, pavement marking, signing and other miscellaneous maintenance work. This project is being undertaken to repair the deteriorating infrastructure of the NATR to enhance safety and improve mobility for all users while reducing ongoing maintenance requirements and maintaining access to recreational opportunities and Parkway natural and cultural resources.

Environmental Commitments and Mitigation Measures

No mitigation measures identified.

Summary of Section 7 of the Endangered Species Act Compliance

The USFWS identified three federal-listed species with potential to occur within the project area that include: northern long-eared bat (endangered), ringed map turtle (threatened), and round hickorynut clam (threatened). The tricolored bat and the alligator snapping turtle are proposed for listing as endangered and threatened species, respectively, that may also occur in the proposed project area. Given the nature of the project that involves resurfacing of the roadway and the lack of habitat in the project area, there is no potential to affect the turtle or the clam species.

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To evaluate impacts to northern long-eared bats as a result of the proposed action, FHWA-EFLHD completed the effects determination key for the northern long-eared bat within the U.S. Fish and Wildlife Service (USFWS) IPaC system. The project activities are covered by the findings of the PBO for compliance with section 7(a)(2) of the Endangered Species Act (ESA). Based upon the IPaC effects determination key, the proposed action is consistent with activities analyzed in the FHWA/FRA PBO. The proposed action will have no effect on the northern long-eared bat. The proposed activities are anticipated to also have no effect on the tri-colored bat.

Summary of Section 106 of the National Historic Preservation Act Compliance

The NPS completed an Assessment of Actions Having an Effect on Historic Properties (approved on December 03, 2018), documenting that the proposed project would have **no adverse effect** on historic properties. The proposed actions would have no adverse effect on historic properties because all ground disturbance will be entirely within the existing operational right-of-way. Historic structures are in the area of potential effect (APE) but will not be adversely affected by the proposed projects. The Parkway's designed historic landscape is present but will not be adversely affected by the proposed activities.

Additional Agency Coordination and Compliance

N/A

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Categorical Exclusion Recommendation:

On the basis of the environmental impact information in the statutory compliance file, with which I am familiar, I believe the project should be categorically excluded from further NEPA analysis.

**TIMBERLEY
BELISH** Digitally signed by
TIMBERLEY BELISH
Date: 2024.10.21
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Timberley Belish
Environmental Protection Specialist
Eastern Federal Lands Highway Division
Federal Highway Administration

Date

Categorical Exclusion Determination:

On the basis of the environmental impact information in the statutory compliance file, with which I am familiar, I am categorically excluding the described project from further NEPA analysis. The project meets the 23 CFR 771.117(a) definition of a categorical exclusion. No unusual circumstances per 23 CFR 771.117(b) apply.

**KEVIN S
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Kevin S. Rose
Environmental Team Leader
Eastern Federal Lands Highway Division
Federal Highway Administration

Date

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Appendix A: Environmental Checklist

Section 7 of the Endangered Species Act:
• Are Federally-listed species potentially present in the study area? ☒ Yes, see Notesⁱ ☐ No - If Yes, effects determination: ☒ No Effect ☐ May Affect, Not Likely to Adversely Affect ☐ May Affect, Likely to Adversely Affect
Section 106 of the National Historic Preservation Act:
• Are historic properties known to be present in the study area? ☐ Yes ☒ No - If Yes, will they be impacted by the project? ☐ Yes ☒ No • Will previously undisturbed ground be disturbed? ☐ Yes ☒ No • Effects determination: ☐ No Historic Properties Affected ☒ No Adverse Effect ☐ Adverse Effect, MOA Executed • Was tribal consultation completed? ☒ Yes ☐ No
Water and Wetlands:
• Section 404 of the Clean Water Act Are impacts to Waters of the US anticipated? ☐ Yes ☒ No - If Yes, approval anticipated: ☐ Nationwide Permit (NWP) ☐ Regional General Permit ☐ Individual Permit • Section 401 of the Clean Water Act ☐ NWP certified by State ☐ Individual Certification • Section 402 of the Clean Water Act (National Pollutant Discharge Elimination System) Will the land disturbance threshold likely be exceeded to require a permit and SWPPP? ☐ Yes ☒ No • Is post-construction stormwater management review/approval anticipated? ☐ Yes ☒ No • ☐ Project is consistent with Executive Order 11990, Protection of Wetlands
Floodplains:
• Is the project in a FEMA floodplain? ☐ Yes ☒ No ☐ Floodplain not mapped • ☐ Project is consistent with Executive Order 11988, Floodplain Management
Section 4(f) of the USDOT Act:
• Does the project meet the Section 4(f) exemption for Federal lands transportation facilities under Section 1119(c)(2) of MAP-21, 23 U.S.C. 138(a)? ☒ Yes ☐ No • Is there a use of a Section 4(f) property in the study area? ☐ Yes ☐ No

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If Yes, De Minimis Finding: ☐ Programmatic: ☐ Individual 4(f): ☐
Section 6(f) of the Land and Water Conservation Fund:
- Was the property purchased with grant funds from the Land and Water Conservation Fund? ☐ Yes ☒ No - If Yes, was documentation of approval from National Park Service Director received for the conversion or replacement of 6(f) property? ☐ Yes ☐ No
Coastal Zone Management Act of 1972:
- Is the project in a Coastal Zone? ☐ Yes ☒ No - If yes, will a Federal Consistency Review be completed? ☐ Yes ☐ No
Right of Way:
- Is the project completely within the transportation facility's right-of-way? ☒ Yes ☐ No - If no, will the project require relocations or easements? ☐ Yes ☐ No
Hazardous Waste and Materials:
- Are hazardous materials or contamination exceeding regulatory thresholds (as set by U.S. EPA, County Environmental Health, etc.) present? ☐ Yes ☒ No - If Yes, is the nature and extent of the hazardous materials or contamination fully known? ☐ Yes ☐ No, plan for securing information provided in Notes
Section 7(a) of the Wild and Scenic Rivers Act:
Are there Wild and Scenic Rivers? ☐ Yes ☒ No ☐ Eligible If Yes, has review by the river-administering agency been completed? ☐ Yes ☐ No
Clean Air Act:
Is the project in a non-attainment area? ☒ Yes ☐ No If Yes, is the project on the Transportation Improvement Program (TIP)/State Implementation Plan(SIP)? ☒ Yes ☐ No
Highway Traffic and Construction Noise Regulations:
☐ The proposed project is a Type I project (highway on a new location, substantial horizontal or vertical alteration, new through or auxiliary lanes). Noise analysis is required. ☐ The proposed project is a Type II project (retrofit for noise abatement). ☒ The proposed project is a Type III project (noise analysis not required). ☐ Does not apply.
Environmental Justice and Title IV Act:
- Is an Environmental Justice population, as identified in Executive Order 12898, present? ☐ Yes, explanation provided in Notes section ☒ No - Will the project induce disproportionately high and adverse impacts to minority, low income, or special groups? ☐ Yes, additional analysis is needed ☒ No
Farmland Protection Policy Act for Highway Projects:
Does the project displace, require acquisition of, or require an easement from farmland?

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☐ Yes ☒ No
Does the project affect any other resources not listed above? Explain below and list anticipated permits:

ⁱ Federally-listed species per U.S. Fish and Wildlife Service's IPaC: